

STANDING ORDER No. Ops.-23

(Previous Standing Order No. 189/2008)

PREVENTION ACTION U/S 107/151 OF THE CODE OF CRIMINAL
PROCEDURE

Section 107 Cr PC deals with Security for Keeping the Peace, which provides:

- (1) When an executive magistrate receives information that any person is likely to commit a breach of the peace or disturb the public tranquility or to do any wrongful act that may probably occasion a breach of the peace or disturb the public tranquillity and is of opinion that there is sufficient ground for proceeding, he may, in the manner hereinafter provided, require such person to showcause why he should not be ordered to execute a bond (with or without sureties) for keeping the peace for such period not exceeding one year as the magistrate thinks fit.
- (2) Proceeding under this section may be taken before any executive magistrate when either the place where the breach of the peace or disturbance is apprehended is within his local jurisdiction or there is within such jurisdiction a person who is likely to commit a breach of the peace or disturb the public tranquillity or to do any wrongful act as aforesaid beyond such jurisdiction.

Similarly Section 151 CrPC deals with arrest to prevent the commission of cognizable offences, which provide:

- (1) A police officer knowing of a design to commit any cognizable offence may arrest, without orders from a magistrate and without a warrant, the person so designing, if it appears to such officer that the commission of the offence cannot be otherwise prevented.
- (2) No person arrested under sub-section (1) shall be detained in custody for a period exceeding twenty four hours from the time of his arrest unless his further detention is required or authorized under any other provision of this code or any other law for the time being in force.

The main object of these sections is preventive in nature to prevent the commission of any cognizable offence. The action under these sections includes security through a bond as well as arrest by a police officer. Under Sec. 107 of Cr PC an executive magistrate can issue a show cause notice to any person to order him to execute a bond with or without sureties for keeping the peace for such period not exceeding one year as the magistrate thinks fit about whom he has information that such person is likely to commit or disturb the public tranquillity or to do any wrongful act that may probably occasion a breach of the peace or disturb the public tranquillity.

Under Sec. 151 of Cr PC, the police officer who has knowledge of a design to commit any cognizable offence may arrest without the orders from a magistrate and without a warrant the person so designing if it appears to such person that the commission of the offence cannot be otherwise prevented. However, he has to be produced before the concerned executive magistrate within 24 hours.

A combined effect of these provisions is that it is not a punishment as under any substantial law but to prevent commission of a cognizable offence either through the fear of a civil liability, i.e. executing a bond for keeping peace or arresting the person before the actual commission of a cognizable offence.

Since these provisions relates to the liberty to a human being, the special executive magistrate (SEM) is under obligation to hold an inquiry to satisfy himself regarding the existence of material justifying action under this section. Various courts have issued guidelines regarding the exercise of powers under the abovementioned action, The Hon'ble High Court of Madhya Pradesh (Indore Bench) in *Arursingh vs. State of MP* 1984 CRL.L.J 1616 has given the following directions to be followed by all the Magistrates while dealing with cases under section 107/116/151 of CRPC. The abovementioned case has been endorsed by the Hon'ble High Court of Delhi in Crl. Ref.No.1/2007- court on its own motion vs State and Ors.

- (A) The magistrate should stress upon the recording of statements to the investigation officer/witness before initiating any proceedings u/s 107/116/151 of Cr PC.
- (B) The magistrate should not order furnishing of surety in the absence of statements of IO/witnesses.
- (C) The magistrate should not send the detainee to jail for failure to furnish surety as directed by him, in case statements of IO/witness have not been recorded.
- (D) The magistrate should not sign the order in a mechanical manner on a cyclostyled paper, but it should be well reasoned and detailed one.

Similarly in the matter of *Sanjeev Kumar Singh vs State of NCT of Delhi - W.P (Crl) 264/2007*, the Hon'ble High Court of Delhi, held that the SEM had exceeded his jurisdiction by not accepting the surety order for Rs. 5000/- and later accepted surety of Rs.15000/- Despite recovery of a PAN card and visiting cards from the arrested person, bail bonds were sent for verification which was not necessary. In *W.P (Crl) 2448/2007, Keshav Kumar Vs State*, The Hon'ble High Court of Delhi had observed that while a perusal of the complaint did not disclose the commission of cognizable offence, but on the same complaint, police officials went to the petitioner's house and arrested him u/s 107/151 of CRPC. In this case also no reason was given by the SEM as to why the bail bond and surety

produced were not accepted on the same day In W.P (Crl) 1392-2007 Purshottam Ramanani Vs Government of NCT of Delhi , the Hon'ble High Court of Delhi had held that the informant who gave a call at '100' to the police and made a complaint about locks being broken was wrongly arrested u/s 107/151 of CrPC and sent to jail whereas the appropriate course of action should have been action u/s 145 CRPC. The Hon'ble High Court of Delhi had taken a suo motu action in Criminal Reference No 01/07 and directed all detenes u/s 107/151 CRPC to be released on personal bond to avoid over crowding or Tihar jail.

All the police officers while dealing with cases U/S 107/151 CRPC should keep in the mind the above mentioned guidelines/directions mentioned above before initiating any action. They must have the prior concurrence from the concerned ACsP I/C subdivisions before effecting any arrest u/s 151 of CRPC. This must be meticulously observed. The ACsP should not give their approval in a mechanical manner but must act strictly as per the law /direction given by various courts to ensure that there is no misuse of these provisions of the law. The SEMs must realise the onerous responsibility they carry and act in a fair and transparent manner in accordance with guidelines laid down by the courts and summarized in this SO.

Previous Standing Order issued vide this Headquarter No.2667-2867/XXV/501/C&T-AC-V, dated 11.01.1989 is hereby superseded.



(Yudhbir Singh Dadwal)
Commissioner of Police
Delhi

No. 33239-333/C&T/AC-V (PHQ), dated Delhi the 11/6/2008